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WON KYUNG JUNG, Korea University, Seoul, South Korea

HUN YEONG KWON, Korea University, Seoul, South Korea

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Privacy and data protection regulations for AI using publicly available data: Clearview AI case

Won Kyung Jung
Korea University
Korea
wonjung21@korea.ac.kr

Hun Yeong Kwon
Korea University
Korea
khy0@korea.ac.kr

Abstract

Data are pivotal resources in artificial intelligence (AI) research and development. Acquiring enormous quantities of high-quality data is essential for improving AI performance. However, obtaining such data poses significant challenges, including high costs and accessibility barriers. A critical question arises: does using publicly available data from the Internet lead to violations of privacy and/or data protection laws? This paper examines privacy rights and data protection laws concerning the use of publicly accessible online data in AI research across the United States, Canada, Europe, and Australia. Focusing on recent controversies, particularly the Clearview AI case, it compares the legal and regulatory frameworks in these jurisdictions. The analysis highlights how digital governance in privacy and data protection must evolve in response to the growing demand for publicly available data in AI development. The central finding of this paper is that significant privacy and data protection risks and debates arise when publicly available data are used without adequate consent or legitimate purposes. The enforcement of these legal principles varies across countries, with substantial dependency on specific circumstances. The Clearview AI case, in particular, has exposed several ironies and unresolved issues surrounding data protection, privacy rights, and enforcement practices. These include disputes over the extraterritorial application of laws, inconsistent and impracticable legal enforcement, and settlements reached without judicial rulings. To foster a fair and trustworthy environment for AI development, compliance with privacy and data protection laws is critical. Achieving this requires more consistent, practical, and cooperative legal frameworks across nations to ensure safe and practical protection of personal data.

CCS Concepts

• **Social and professional topics**; • **Computing/technology policy**; • **Government technology policy**;

Keywords

Data protection, Privacy, Facial recognition technology, AI, Biometric data, First Amendment, GDPR, BIPA, Scraping,

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1 INTRODUCTION

Data are invaluable to artificial intelligence (AI) innovations [1]. Training generative AI models such as large language AI models, requires an enormous amount of data [2]. High-quality data are crucial for creating accurate AI systems [3]. That is, acquiring vast quantities of high-quality data is essential for improving AI performance. However, obtaining such data poses significant challenges, including high costs and accessibility barriers. "Data is not generally available to smaller tech firms, nonprofits, or academia" [4]. Consequently, "generative AI models heavily rely on publicly available data to train their models" [5]. Yet, does using publicly available data from the Internet lead to violations of privacy and/or data protection laws?

This paper examines privacy rights and data protection laws concerning the use of publicly accessible online data in AI research across the United States (US), Canada, Europe, and Australia. Focusing on recent controversies, particularly the Clearview AI case, it compares the legal and regulatory frameworks in these jurisdictions. The paper will then discuss how the digital governance of privacy and the protection of data in public online spaces should be considered and established concerning AI technology development.

2 CLEARVIEW AI

2.1 Clearview AI

Clearview is a US facial recognition technology company. In January 2020, New York Times journalist Kashmir Hill revealed the story of Clearview, drawing attention to its facial recognition technology and the associated privacy concerns [6]. It was reported that Clearview developed its technology using over 3 billion photos [7] scraped from publicly accessible websites, including social networking platforms such as Facebook, Twitter, and YouTube [6]. Clearview's dataset is seven times larger than that of the FBI, which contains approximately 411 million images [6].

Clearview offers a facial recognition search engine that identifies individuals by comparing images uploaded by clients with those in its database. Government agencies and the military utilize this solution to gather intelligence, enforce criminal law, and ensure national security [8].

Clearview's technology for collecting personal data involves the following steps [8]:

(1) Clearview collects images of faces and associated metadata from publicly available online websites.
(2) It creates biometric identifiers.

(3) Clients can upload an image to find matches, receiving a list of search results.

3 GLOBAL PRIVACY AND DATA PROTECTION LAW ENFORCEMENT

3.1 Europe

In Europe, several complaints were lodged with data protection authorities against Clearview. Authorities in Germany, France, Italy, Greece, Austria, and the UK concluded that the company breached the European Union (EU) General Data Protection Regulation (GDPR). They ordered Clearview to cease any further collection of biometric data and to delete personal information. Conversely, the UK is the only country where the commissioner's decision was overturned. This paper will examine how European countries reached their conclusions.

3.2 Germany

Germany was the first country to issue an order against Clearview. The investigation began in 2020 after a German citizen, filed a formal complaint. He discovered that Clearview had developed facial recognition technology by scraping vast amounts of image data from the internet. Concerned that his images were being used without his knowledge or consent, the complainant inquired whether the company held any photos of him in its database. In response, Clearview provided two screenshots of his images. Fearing a loss of control over his data, the complainant asserted that Clearview's actions were unlawful. He subsequently complained to the local data protection authority in Hamburg [9].

On 27 January 2021, the Hamburg Commissioner for Data Protection and Freedom of Information (HmbBfDI) confirmed that Clearview had violated German data protection law. The investigation determined that the extracted hash value constituted biometric data as defined under the GDPR, Article 4(14). Biometric data are subject to strict processing restrictions, particularly due to the prohibition on processing special categories of data. Clearview's actions were unlawful, as it failed to obtain the necessary consent from the data subject per Articles 9(1) and 9(2) of the GDPR [10].

Clearview argued that the GDPR did not apply to the company, as its registered office was based in the US, outside the EU. However, the German data protection authority countered that the GDPR applies to the "processing of personal data of data subjects located in the EU by a controller or processor not established in the Union, where the processing activities are related to the monitoring of their behaviour within the EU." In its defense, Clearview claimed that no ongoing monitoring occurred, asserting that it merely provided a snapshot of data. Nevertheless, the authority maintained that Clearview had stored data over an extended period and that the data subject was physically present within German territory.

Despite the ruling, the complainant found the decision unsatisfactory. While the authority ordered the deletion of the hash values, it did not mandate the removal of the biometric images. Moreover, the ruling addressed only the individual's specific complaint without considering the broader concerns of German residents [10]. The complainant criticized the decision, stating, "This surveillance machine is terrifying. Almost one year after my initial complaint, Clearview doesn't even have to delete the pictures that show me. Even worse, every individual must submit a complaint. This indicates that our data is not yet sufficiently protected and highlights the need for action against biometric surveillance" [11]. Additionally, no penalty was imposed on Clearview by the German authority.

3.3 France

The French data protection authority (CNIL) conducted an investigation and determined that Clearview had violated French data protection law. In November 2021, the CNIL issued a formal notice instructing Clearview to cease the collection and use of personal data in France without a valid legal basis. The CNIL identified two key breaches of the GDPR. First, it found that Clearview's processing of personal data was unlawful under Article 6, as the company collected and used biometric data without appropriate legal grounds. Second, it noted Clearview's failure to adequately respect the rights of individuals, particularly regarding access to their data (Articles 12, 15, and 17). Consequently, the CNIL ordered Clearview to stop collecting and using data from individuals residing in France without a valid legal justification and to facilitate the exercise of data subjects' rights, including the deletion of personal data upon request [12].

The CNIL clarified that the 'publicly accessible' nature of data does not change its qualification as personal data, nor does it grant a general authorization for its reuse and further processing, especially without the data subject's knowledge [13]. It further emphasized that biometric data are particularly sensitive because they are tied to our physical identity (who we are) and enable unique identification [13].

In October 2022, the CNIL imposed a substantial penalty of € 20 million on Clearview, primarily due to the company's lack of cooperation throughout the investigation procedures [14]. On 13 April 2023, an additional overdue penalty of € 5.2 million was levied for Clearview's failure to comply with the enforcement order [15].

3.4 Italy

The Italian data protection authority (Garante) initiated its own investigation after observing media coverage regarding Clearview's facial recognition business and privacy issues. In 2021, the Garante received six complaints, including those from two groups active in privacy protection and fundamental human rights [16].

The Garante concluded that Clearview targeted Italian individuals and monitored their behaviours. Article 3.2(b) of the GDPR applies even when the company is not established in the European Union but is engaged in monitoring user behaviour. The Garante found that Clearview violated several fundamental principles of the GDPR. Personal data held by the company, including biometric and geolocation information, was processed unlawfully without an appropriate legal basis. Additionally, the company's actions infringed on principles of transparency and purpose limitation [16].

In February 2022, the Garante imposed a fine of € 20 million on Clearview. The Garante prohibited "any further collection, by way of web scraping techniques, of images and the relevant metadata concerning persons in the Italian territory and on further processing of standard and biometric data". The Garante ordered the deletion of biometric data and prohibited the processing of personal data using Clearview's facial recognition technology [16].

3.5 Greece

The Hellenic Data Protection Authority (HDPA) issued a similar order to that of the Italian Garante. It ordered Clearview to comply with the GDPR to address the complainant's request for access to personal data while imposing a prohibition on the collection and processing of personal data of subjects located in the Greek territory using the methods associated with its facial recognition service. Ultimately, the authority ordered Clearview to delete the personal data of subjects located in Greece that had been collected and processed using these methods. The HDPA also imposed a penalty of € 20 million [17].

3.6 Austria

The Austrian data protection agency (DSB) also determined that Clearview was subject to the GDPR and violated Austrian data protection regulations [18, 19]. The DSB confirmed that collecting images for a biometric search engine constitutes a contravention of the GDPR, as it pertains to the scraping and selling of personal information from Europeans. The DSB's position is clear: the scope of territorial Article 3(2) of the GDPR is broadly formulated, encompassing not only processing activities directly aimed at monitoring but also those "related to the monitoring" [20].

The DSB found that Clearview failed to comply with the principle of purpose limitation, as the purposes for which Clearview processed the data differed from the purposes for which the data were published on the Internet (Art 5(1)(b)). Additionally, Clearview breached the principles of fairness and transparency (Art 5(1)(a)), as "the data subject could not expect that their data would be disclosed to Clearview's clients, most notably law enforcement agencies" [20].

The processing was therefore unlawful and the DSB ordered Clearview to delete the personal data. However, the Austrian DPA did not impose a fine on Clearview activities considering the deletion not necessary to enforce the regulation [20].

3.7 United Kingdom

3.7.1 UK Information Commissioner's Office (ICO) order. On 18 May 2022, an enforcement and a monetary penalty notice were issued by the UK ICO [21]. The ICO ordered Clearview to stop obtaining and using the personal data of UK residents that is publicly available on the Internet and to delete any such data from its systems [21, 22].

The ICO outlined breaches by Clearview, starting with the violation of data protection principles under Article 5(1)(a) of the (UK) GDPR [21, 23]. The processing of personal data by Clearview was not "fair," "lawful," or "transparent." This practice is unfair because data subjects are "not made aware of the processing and would not reasonably expect their personal data" from publicly available websites to be scraped, added to a global database, and to be used by a wide range of government agencies for image matching [21, 24].

The processing failed to meet any of the lawful conditions for personal data under Article 6 of the (UK) GDPR, nor for special category personal data under Article 9(2) of the same regulation. Data subjects had not provided consent for the processing. The personal data processed by Clearview was classified as "special category data," which requires explicit consent unless an exception applies [21, 25].

The ICO ordered Clearview to delete any personal data (including URLs and metadata) of UK residents that is publicly available online and to cease scraping, obtaining, and processing any personal data of UK residents [26]. The ICO imposed a penalty of £7,552,800 [21]. The UK Information Commissioner remarked, "The company not only enables identification of those people but effectively monitors their behaviour and offers it as a commercial service. That is unacceptable" [22].

Ironically, the ICO decision reported that when individuals inquired about their possible inclusion in the database, Clearview requested that they provide additional images to verify their identity [27].

3.7.2 Clearview's appeal to the UK Tribunal. In October 2023, Clearview filed an appeal to the UK Tribunal, claiming that the monitoring of behaviour was conducted by a third party, not by them, in accordance with Article 3(2)(b), and that the processing of data was not related to monitoring behaviour. Clearview emphasized that its services were exclusively offered to non-EU/UK criminal law enforcement and national security agencies.

The Tribunal ruled that the processing undertaken by Clearview was indeed related to the monitoring of data subjects' behaviour in the UK. Clearview's clients, who monitor the behaviour of UK residents, mean that Clearview's processing, whether as a sole or joint controller, is "related to" such monitoring [28]. The Tribunal stated that "obtaining or seeking to obtain information of this nature constitutes monitoring of the person's behaviour" [28]. Importantly, it noted that "the ruling makes clear that even if a company is not established in the UK, it is subject to UK data protection law related to the monitoring of people living in the UK" [29].

Conversely, the Tribunal ultimately concluded that Clearview's processing fell outside the material scope of the GDPR and was not relevant to the provisions of Article 3 [29]. It held that the UK ICO does not have the authority to impose penalties on a company offering services to foreign governments, even if it processes the personal data of British residents.

The ICO argued that the Tribunal's legal interpretation was incorrect, asserting that "Clearview itself was not processing for foreign law enforcement purposes and should not be shielded from the scope of UK law on that basis." The ICO maintains that since Clearview provides its services commercially, it will be subject to its jurisdiction [29]. The ICO further announced its intention to appeal the First Tribunal's decision [29]. While acknowledging the importance of AI and supporting innovation in AI tools, the Commissioner emphasized the necessity of taking appropriate action to protect the privacy rights of UK people as the public privacy defender.

It is ironic that this tribunal decision allows governments outside the UK, such as those of South or North Korea, to collect and use British people's biometric data for AI security-related developments without contravening UK data protection regulations.

3.8 Australia

3.8.1 Office of the Australian Information Commissioner (OAIC) decision. In 2020, the OAIC and the UK ICO launched a joint investigation into Clearview's handling of personal data, focusing on the company's use of 'scraped' data that included individuals' biometric information [30].

In October 2021, the OAIC determined that Clearview had breached the Australian Privacy Act (PA) and the Australian Privacy Principles (APP). Firstly, it did not obtain the necessary consent for collecting sensitive information, as required by APP 3.3, and no exceptions applied (APP 3.4). Furthermore, Clearview collected personal information through unlawful and unfair means (APP 3.5). The company also failed to take reasonable steps to notify individuals about the collection of their personal information, ensure the accuracy of disclosed information, implement adequate practices and procedures (APP 5), and comply with the disclosure requirements under APP 10.2 [31].

Australian Information Commissioner Angelene Falk stated, "When Australians use social media or professional networking sites, they don't expect their facial images to be collected without their consent by a commercial entity to create biometric templates for completely unrelated identification purposes" [32]. The OAIC's decision "highlights the lack of transparency around Clearview's collection practices, the monetization of individuals' data for a purpose entirely outside reasonable expectations, and the risk of adversity to people whose images are included in their database" [32].

The OAIC ordered Clearview to cease collecting facial images and vectors, and to destroy existing images and templates collected from Australia. However, no pecuniary penalties were imposed.

3.8.2 Clearview's appeal at the Administrative Appeals Tribunal (AAT). Clearview immediately contested the OAIC determination before the AAT. The company argued that facial images did not qualify as personal information. Furthermore, it claimed that the OAIC had no legal jurisdiction because Clearview did not conduct business in Australia, having neither a physical presence nor revenue generated within the country [33]. Clearview also claimed that its data collection was achieved through servers located outside of Australia. The company further asserted that the images were publicly available and, therefore, could be taken without consent. In May 2023, the AAT upheld the OAIC decision, confirming that Clearview had violated the Australian Privacy Act. The AAT ruled that Clearview had collected sensitive personal information from Australian individuals without their consent, and determined that online images qualified as "personal information."

The AAT also confirmed that Clearview had an "Australian link," satisfying the condition for territorial application [33]. Although Clearview had offered its services to the Australian Federal Police on a free trial basis, it had also acquired data from servers located in Australia. Even after discontinuing these trials, Clearview met the requirement for an Australian link because it carried on business in Australia by collecting data from Australian servers and collecting information in Australia through the same process [33]. In December 2022, an amendment to the PA further lowered the threshold for establishing an "Australian link" by removing the requirement that personal information must be collected within Australia [33, 34]. The collection of images from servers located in Australia using Clearview's web crawler was sufficient to constitute "carrying on business in Australia," thus establishing the "Australian link." The AAT ultimately concluded that Clearview had violated APP 3.3 [33, 34].

However, the AAT disagreed with the OAIC's finding that Clearview had breached APP 3.5, which requires that personal information be collected "only by lawful and fair means". The AAT commented that it is not unlawful to collect information in public when that information is freely accessible information. Although LinkedIn and Twitter had restricted the use of bots to access their services, the AAT inferred that the 'cease and desist' letters issued by these companies, without formal legal action, suggested that Clearview had not violated their terms of service. The AAT remarked, "I am not in a position to judge whether the interactions between Clearview's web-crawler and these sites amount to breaches of conditions of access." It further stated that it was "hard to judge" whether the collection method was unfair [33, 34]. Nevertheless, the AAT concluded that collecting personal information from publicly accessible sources without access restrictions was not unfair, and therefore, Clearview did not breach APP 3.5. Thus, Clearview's scraping practices were not considered unlawful or unfair under this provision [33]. However, in August 2023, Clearview withdrew from AAT proceeding, and the original OAIC's decision therefore still stands [35]. On 21 August 2024, the Australian Privacy Commissioner announced that no further resources would be allocated to scrutinize the actions of Clearview. The OAIC stated that it was not convinced additional enforcement measures were warranted in Clearview's case [35].

3.9 Canada

Other than the US, Canada represents Clearview's largest market [36]. In 2020, the Office of the Privacy Commissioner of Canada (OPC) initiated a joint federal-provincial investigation to examine Clearview's privacy violations [37].

In February 2021, the OPC found that Clearview had not complied with the Canadian Personal Information Protection and Electronic Documents Act (PIPEDA) for several reasons. Firstly, Clearview failed to obtain the required consent regarding its collection, use, and disclosure of Canadians' personal information. Secondly, the purposes for which Clearview collected, used, and disclosed personal information were inappropriate [38].

Clearview argued that it was exempt from consent requirements because the information was "publicly available," as referred by Canadian privacy laws. However, the Canadian Commissioner determined that this exemption did not apply, stating that "information collected from public websites, such as social media or professional profiles, and then used for an un-related purpose, does not fall under the 'publicly available' exception" [38].

The OPC elaborated on the meaning of an appropriate purpose, specifying that it should relate to the purposes originally posted. The purpose shall not detriment and create any risks significantly harmful to individuals. In particular, the OPC noted, "the vast majority have never been and will never be implicated in a crime" [38]. The OPC found that "people did not place their images online for that Clearview's collection purposes" [39]. Additionally, the

OPC pointed out that indiscriminate scraping of publicly available websites was considered an unreasonable practice.

Importantly, the OPC made only a recommendation, as it lacked the authority to impose fines or issue orders. Instead of penalties, the OPC sent a letter of intention to Clearview, instructing it to cease its facial recognition services in Canada and to delete the "images and biometric facial arrays collected from individuals in Canada in its possession" [39].

3.10 United States

In the US, there is no nationwide regulation covering personal data, including biometric data, that targets private companies [40]. The US Privacy Act of 1974 is a federal statute protecting data privacy and restricting the use of data held by government agencies. The Health Insurance Portability and Accountability Act (HIPAA) pertains to individuals' medical information, while the Children's Online Privacy Protection Act (COPPA) protects children's personal information. The Gramm-Leach-Bliley Act (GLBA) governs the disclosure of consumer data. However, no such laws generally cover the collection and use of personal information and biometric data by private businesses [41].

Conversely, some states have established strict rules on data privacy. Illinois, for instance, is known for having perhaps the strictest regulation regarding biometric data in the US. The Biometric Information Privacy Act (BIPA) regulates "private entities," including "any individual, partnership, corporation, limited liability company, association, or other groups, however organized." [41]. BIPA defines "biometric information" as any data based on an individual's biometric identifier, used to identify that individual, including "scan of hand or face geometry" [41].

In May 2020, the American Civil Liberties Union (ACLU), a law firm in Illinois, filed a lawsuit against Clearview, alleging that the company violated the privacy rights of Illinois residents under BIPA [42]. In its defense, Clearview sought to dismiss the case in an Illinois state court, arguing that the law did not apply since the conduct was proceeded in New York through Internet including on social networks. Clearview also asserted its rights under the First Amendment of the US Constitution, which protects freedom of speech. Furthermore, the company claimed that individuals should not expect privacy protection for images they upload and disclose public online.

Clearview finally ended the litigation by entering into a settlement agreement, under which it agreed to sell access only to government or public sector entities and to cease selling access to private individuals, with some limited exceptions [43].

It has been noted that in the US, "cases that are settled before a penalty or compensation verdict is announced will also often have financial settlement that are public" [44]. Critics argue that most BIPA lawsuits reach settlements before there have been meaningful clarifications of relevant technical intricacies and legal definitions, leaving considerable uncertainty regarding the law's application [45].

4 CONCLUSION

Publicly available data from online platforms are a crucial resource for AI researchers and engineers [46]. However, the extent to which privacy rights can be protected when information is disclosed in public spaces remains a subject of debate

The Clearview case demonstrates that in Europe, Australia, and Canada, even publicly accessible online data must be protected under relevant data protection laws and regulations. An organization can be subject to these laws even without a physical presence in the territory. It is now clearer that facial images, such as photos, are considered biometric and sensitive personal information. Data protection and privacy laws require the fair and lawful processing of such data, including obtaining the data subject's consent before use, and ensuring that the purpose of data use aligns with prior notifications. Authorities concluded that Clearview failed to comply with these laws, and commonly ordered the company to cease collecting images of individuals within their territories and to delete all previously collected images. As noted, "Just because a dataset is publicly available, it doesn't imply that it can be used to create commercial AI software" [46].

The regulation of privacy and data protection varies from country to country. Some nations, such as France, Italy, and Greece, have imposed penalties on Clearview, while others, including Canada and Australia, have not. Although the UK Information Commissioner's Office (ICO) ruled that Clearview's actions violated the law and imposed a penalty, the UK tribunal overturned this decision, citing an exemption under the scope of territorial jurisdiction. In Germany, the case focused solely on an individual's complaint. Meanwhile, the Australian Information Commissioner (OAIC) decided scraping is illegal but Australian tribunal considered that scraping was not unlawful or unfair as long as it occurred without access restrictions. In the US, there are no comprehensive national privacy or data protection laws, apart from sector-specific regulations covering areas like medical information and children's data. As noted, "Biometric privacy, and the BIPA in particular, seem like individual users' best weapon against Clearview, but they have limitations," and the "legal status of unauthorized scraping of public information" remains uncertain [47].

To ensure certainty for researchers and engineers developing and training AI technology, clearer and more consistent laws and regulations are essential. Active global cooperation among nations is also strongly recommended. Recently, several international privacy and data protection authorities, including those in Australia, Canada, and the UK, issued a joint statement addressing unlawful data scraping and setting global expectations for social media platforms and other online services [48, 49]. The statement affirms that "personal information that is publicly accessible is still subject to data protection and privacy laws in most jurisdictions" [48].

Simultaneously, a flexible, fair, and responsible approach to data use is essential for fostering technological innovation. Significant concerns arise regarding consent as "obtaining it would be practically difficult given the vast size of training datasets" [50]. Additionally, the process of data deletion may introduce further privacy challenges. Disclosing the purposes of data collection to individuals may not always be feasible due to corporate confidentiality issues. Thus, enforcing such regulations may neither be effective nor practical. In July 2024, the Korean Personal Information Protection Commission released the "Guidelines on AI Developers' Use of Publicly Available Personal Data," which mandate secure measures based on the legitimate interest standard under the Personal

Table 1: Summary of Clearview's Privacy and Protection Law Breaches in Europe, Australia, and Canada

	Germany	France	Italy	Greece	Austria	UK	Australia	Canada
Authorities	HmbBfDI	CNIL	Garante	HDPA	DSB	ICO	OAIC	OPC
Decision date (notice)	27 Jan 2021	(26 Nov 2021) 20 Oct 2022s	10 Feb 2022	13 Jul 2022	10 May 2023	18 May 2022	14 Oct 2021	2 Feb 2021
Regulations	GDPR	GDPR(RGPD)	GDPR	GDPR	GDPR	GDPR (UK)	PA, APP	PIEDA
Territorial scope		Art. 3(2)	Art. 3(2)	Art. 3	Art. (3)(2)(b)	Art. 3(2)(b)		
Biometric data	Art 4. No. 14 Art. 9(1)	Art. 9(1)	Art. 9(1)	Art. 9(1)	Art. 9(1)	Art. 9(1)	APP 3.3	OPC statement
Principles of processing			Art. 5(1)(a),(b) & (e)	Art. 5(1)(a) & (2)	Art. 5(1)(a), (b) & (c)	5(1)(a) & (e) 5(2)	APP. 3.5	Principle 5(3)
Rights of the data subjects	Art. 17(1)(d)	Art. 12, 15, 17	Art. 12 ∼ 15	Art. 12, 14, 15, 17		Art. 14 ∼ 17 Art. 21 & 22	APP. 5 APP. 10.2	
Lawful processing		Art. 6	Art. 6	Art. 6	Art. 6(1)	Art. 6		Principle 4.3 Principle 6.1
Processing of special categories of personal data	Art. 9(2)	Art. 9(2)	Art. 9(2)	Art. 9(2)	Art. 9(2)	Art. 9(2)	APP. 3.3, APP. 3.4	
Representatives of controllers			Art. 27	Art. 27	Art. 27(2)			
Data protection impact assessment						Art. 35		
Lack of cooperation		Art 31 (RGPD)						
Penalty	None	€ 20 million (+€ 5.2 million, 13 Apr 2023)	€ 20 million	€ 20 million	None	€ 9 million (£7.5 million)	None	None
Appeal. Tribunal judgment						Dismissed ICO decision (17 Oct 2023)	Upheld OAIC decision (APP 1.2, 3.3 only) (8 May 2023), but withdrawn	

Information Protection Act [51]. Striking a balance between technological innovation and safeguarding individual rights is critical for ensuring harmonious coexistence in the evolving digital landscape [5]. Ongoing discussions on legal and regulatory protections for privacy and personal data in the context of AI development are essential to achieve practical and safe data usage, underpinned by closer global cooperation.

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[25] ICO also commented that the scale of Clearview database continues to increase, which means that Clearview does not have a proper data retention policy that ensures personal data is not held for longer than necessary (Article (5)(e)).

[26] Clearview also has not fulfilled its disclosure obligations for data subjects as provided in Article 14. In addition, Clearview does not hold any of the subject data rights, that is, access to personal data, rectification of personal data, erasure of personal data, objection to the processing of personal data, and automated processing in accordance with Articles 15, 16, 17, 21 and 22 (Rights). Clearview has not carried out the Data Protection Impact Assessment ("DPIA"), contrary to Article 35.

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